



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 12244

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: June 30, 1999

MAR 26 1999

1. GRANTEE: Lone Star Industries
New Orleans, LA
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of the material described in paragraph 6 below in an over-loaded covered hopper rail car. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.24b(a)(iii); 173.24b(d)(ii); 173.26 and 173.31(a).
5. BASIS: This emergency exemption is based on the application of Lone Star Industries dated March 23, 1999, submitted in accordance with § 107.117 and a determination that it is necessary in order to protect life and property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Ammonium nitrate	5.1	UN1942	III

7. SAFETY CONTROL MEASURES:
 - a. Packaging prescribed is authorized in § 173.240(a) for certain low hazard solid materials. The over-loaded rail car's number is CSXT 246313.
 - b. "DOT-E 12244" must appear on the shipping papers.

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8. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.
9. MODAL REQUIREMENTS: None as a requirement of this exemption.
10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

11. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

MAR 26 1999

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.

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Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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